

25VECV01511 25VECV01511

County: los-angeles

Division: Civil Law and Motion

Department: 107

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Case Number: 25VECV01511 Hearing Date: July 20, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Kasra

Majzoob,

Plaintiff.

v.

Volkswagen

Group of America, Inc., et al.

Defendants.

Case Number Department

25VECV01511 107

COURT'S [TENTATIVE]

ORDER RE: ¿

Compel Deposition and Compel Vehicle Inspection

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny

I.

BACKGROUND

On

April 17, 2024, Plaintiff Kasra Majzoob ("Plaintiff") leased a 2024 Audi S3 (the "Vehicle"). (Complaint ¶ 9.) The Vehicle was defective. (Complaint ¶ 11.)

On

March 17, 2025, Plaintiff filed a complaint against Defendants Volkswagen Group of America, Inc., DCH Calabasas-A, LLC d/b/a Audi Calabasas, and Does 1 through 10, alleging causes of action for: (1) violation of Song-Beverly Act - breach of express warranty; (2) violation of Song-Beverly Act - breach of implied warranty; (3) violation of the Song-Beverly Act section 1793.2; and (4) negligent repair.

On

June 8, 2026, Defendant Volkswagen Group of America, Inc. ("Defendant") filed a motion to compel deposition of Plaintiff and production of documents (the "Motion to Compel Deposition") and a motion to compel inspection of Plaintiff's vehicle (the "Motion to Compel Vehicle Inspection"). On July 10, 2026, Plaintiff filed oppositions.

II.

PLAINTIFF'S OPPOSITIONS

Oppositions are due to be filed and served at least nine court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) Plaintiff filed oppositions only six court days before the hearing. Plaintiff's oppositions are untimely and the court does not consider them.

III.

MOTION TO COMPEL DEPOSITION

Meet

and Confer

A

motion to compel a deposition must “be accompanied by a meet and confer declaration under section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.” (Code Civ. Proc., § 2025.450, subd. (b)(2).)

Code

of Civil Procedure section 2016.040, subdivision (a) requires the meet and confer declaration to “state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.”

Defendant’s counsel submits a declaration stating they sent Plaintiff’s counsel a letter requesting Plaintiff’s availability for a deposition and asking Plaintiff to provide dates. (Roberson Declaration ¶ 3.) Defendant served a notice of deposition that included a meet and confer letter. (Roberson Declaration ¶ 4.) Plaintiff did not respond and Defendant took a certificate of non-appearance at the deposition. (Roberson Declaration ¶ 5.) Defendant’s counsel followed up by email regarding alternative deposition dates. (Roberson Declaration ¶ 7.)

Defendant’s

counsel’s declaration does not show Defendant’s counsel specifically inquired about Plaintiff’s nonappearance. Further, Defendant’s counsel’s declaration suggests the meet and confer efforts took place only via email. Meeting and conferring under Code of Civil Procedure section 2016.040, subdivision (a) must be done in person, by telephone, or by video conference. Meeting and conferring by email is insufficient.

Defendant

failed to satisfy the meet and confer requirement.

Legal

Standard

“Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with § Section

2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by taking in California the oral deposition of any person, including any party to the action. The person deposed may be a natural person, an organization such as a public or private corporation, a partnership, an association, or a governmental agency.” (Code Civ. Proc., § 2025.010.)

An

oral deposition “shall be scheduled for a date at least 10 days after service of the deposition notice.” (Code Civ. Proc., § 2025.270, subd. (a).) “The service of a deposition notice under Section 2025.240 is effective to require any deponent who is a party to the action or an officer, director, managing agent, or employee of a party to attend and to testify, as well as to produce any document, electronically stored information, or tangible thing for inspection and copying.” (Code Civ. Proc., § 2025.280, subd. (a).)

“If, after service

of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” (Code Civ. Proc., § 2025.450, subd. (a).)

“Any party served

with a deposition notice that does not comply with Article 2 (commencing with Section 2025.210) waives any error or irregularity unless that party promptly serves a written objection specifying that error or irregularity at least three calendar days prior to the date for which the deposition is scheduled, on the party seeking to take the deposition and any other attorney or party on whom the deposition notice was served.” (Code Civ. Proc., § 2025.410, subd. (a).)

Discussion

Defendant

moves for an order requiring Plaintiff to appear for deposition within fifteen

days. (Motion p. 7.) Defendant's counsel submits a declaration, stating:

On

March 28, 2025, Defendant served a representation letter on Plaintiff's counsel advising that Defendant intended to take Plaintiff's deposition and inspect the Subject Vehicle within the next 120 days. The letter requested Plaintiff's availability for both the deposition and the vehicle inspection and asked Plaintiff to provide five potential dates.

On

May 21, 2025, Defendant served a Notice of Deposition, scheduling the deposition for March 13, 2025. Defendant included a meet-and-confer letter advising Plaintiff's counsel:

"If we do not receive alternative dates by February 14, 2025, we will assume you and your client are agreeable to the date noticed and move forward with the deposition. If Plaintiff fails to appear, we will take a certificate of nonappearance and file a motion to compel Plaintiff's deposition."

Defendant

did not hear from Plaintiff nor receive any alternative availability. Accordingly, on July 31, 2025, Defendant proceeded with the deposition and took a certificate of non-appearance as indicated in its notice.

(Roberson

Declaration ¶¶ 3-5.)

Defendant's

counsel's declaration sets forth an implausible sequence of events. Defendant's counsel purportedly served Plaintiff with a notice of deposition on May 21, 2025, which set the deposition for March 13, 2025. (Roberson Declaration ¶ 3.) Assuming that is true, Defendant's counsel noticed the deposition more than two months after the deposition was set to take place. Further, the meet and confer letter purportedly attached to the notice of deposition requested Plaintiff's counsel provide alternative dates by February 14, 2025. (Roberson Declaration ¶ 4.) It is impossible for Plaintiff's counsel to have provided alternative dates by February 14, 2025, when the letter was purportedly served to Plaintiff's counsel on May 21, 2025, almost three months after the deadline. (Roberson Declaration ¶ 4.) Further, Defendant's counsel's declaration states the

deposition proceeded on July 31, 2025. (Roberson Declaration ¶ 5.) The deposition notice purportedly set the deposition for March 13, 2025, so it is unclear to the court why Defendant would have proceeded with a deposition on July 31, 2025. (Roberson Declaration ¶¶ 4-5.)

Defendant's

counsel also states that on September 9, 2025, Plaintiff provided alternative dates for the deposition. (Roberson Declaration ¶ 6.) Defendant selected October 28, 2025, but was unable to proceed on that date due to a family emergency. (Roberson Declaration ¶ 6.) Defendant's counsel followed up regarding alternative deposition dates. (Roberson Declaration ¶ 7.) On January 27, 2026, Defendant served another notice of deposition that set the deposition for February 13, 2026. (Roberson Declaration ¶ 8.) Defendant's counsel states that "[t]o date, Defendant has not received a proposed date for Plaintiff's deposition. Defendant has attempted to avoid filing a motion in order to conserve judicial resources, but further informal meet-and-confer efforts have proven futile." (Roberson Declaration ¶ 9.)

Defendant's

counsel's declaration sets forth an implausible sequence of events regarding the first deposition notice. The second deposition date was cancelled due to Defendant's counsel's family emergency. As for the January 17, 2026, notice of deposition setting the deposition for February 13, 2026, Defendant's counsel's declaration does not state Plaintiff failed to appear. It also does not reference Plaintiff's objections, which are referenced in an email attached to the declaration. (Roberson Declaration Ex. A pdf pp. 12.)

Defendant

has not shown it served Plaintiff with a valid deposition notice or that Plaintiff failed to properly object or appear at the deposition. Defendant's Motion to Compel Deposition is denied.

Alternatively,

Defendant requests a 120-day continuance of the trial date to complete fact discovery. (Motion to Compel Deposition p. 7.)

California

Rules of Court, rule 3.1332(c) provides that "[a] party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts" may constitute good cause to continue trial.

As

noted above, Defendant's counsel's declaration sets forth an implausible sequence of events. The court is not persuaded Defendant has made diligent efforts to complete Plaintiff's deposition notice, such that Defendant's failure to complete the deposition is excused.

IV.

MOTION

TO COMPEL VEHICLE INSPECTION

Meet and Confer

Motions

brought under Code of Civil Procedure section 2031.310 must be accompanied by a meet and confer declaration under Code of Civil Procedure section 2016.040. (Code Civ. Proc., § 2031.310, subd. (b)(2).)

Code

of Civil Procedure section 2016.040, subdivision (a) requires the meet and confer declaration to "state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion."

Defendant's

counsel's declaration references only meet and confer efforts taking place via email. (Roberson Declaration ¶ 5.) Under Code of Civil Procedure section 2016.040, subdivision (a), meeting and conferring must take place in person, by telephone, or by videoconference. Meeting and conferring by email is insufficient.

Defendant

failed to satisfy the meet and confer requirement.

Legal Standard

"On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) A statement of compliance with the demand

is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive. (3) An objection in the response is without merit or too general.” (Code Civ. Proc., § 2031.310, subd. (a).) “The motion shall set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) 2222

“In a motion under subdivision (a) relating to the production of electronically stored information, the party or affected person objecting to or opposing the production, inspection, copying, testing, or sampling of electronically stored information on the basis that the information is from a source that is not reasonably accessible because of the undue burden or expense shall bear the burden of demonstrating that the information is from a source that is not reasonably accessible because of undue burden or expense.” (Code Civ. Proc., § 2031.310, subd. (d).) 2222

Discussion

Defendant

moves under Code of Civil Procedure sections 2031.310 and 2023.010 for an order requiring Plaintiff to produce the Vehicle for inspection. (Motion pp. 2, 5.)

Motions

to compel further responses to demands for inspection of documents or tangible things must be accompanied by a separate statement. (Cal. Rules of Court, rule 3.1345(a)(3).) Defendant filed no separate statement with the court.

Plaintiff

served Defendant with objections to Defendant’s demand for vehicle inspection. (Roberson Declaration ¶ 4; Ex. A pdf pp. 8-10.) Defendant references the objections in the Motion, but otherwise fails to substantively address them. (Motion p. 3.) Defendant has not shown Plaintiff’s objections are without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a)(3).)

Finally,

motions brought under Code of Civil Procedure section 2031.310 must be filed within 45-days after service of the response. (Code Civ. Proc., § 2031.310, subd. (c).) Electronic service extends the deadline by two court days. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) Plaintiff served Defendant with objections by electronic mail on February 17, 2026. (Roberson Declaration ¶ 4; Ex. A pdf p. 11.) Forty-five days, plus two days for electronic service, after

February 17, 2026, was April 7, 2026. Defendant filed the Motion to Compel Vehicle Inspection on June 8, 2026. Thus, the Motion to Compel Vehicle Inspection is untimely.

V.

CONCLUSION

For the foregoing reasons, the Motion to Compel Deposition and Motion to Compel Vehicle Inspection are denied.

Dated: July 20, 2026 Hon. Eric Harmon

Judge
of the Superior Court